

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

SENATE BILL 1209

By: Kirt

AS INTRODUCED

An Act relating to forcible entry and detainer;
amending 12 O.S. 2021, Section 1148.4, which relates
to issuance and return of summons; modifying time
period for certain trial; updating statutory
language; making language gender neutral; and
providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 12 O.S. 2021, Section 1148.4, is
amended to read as follows:

Section 1148.4. The summons shall be issued and returned as in
other cases, except that it shall command the sheriff, or other
person serving it, to summon the defendant to appear for trial at
the time and place specified ~~therein~~ in the summons, which time
shall be not less than five (5) days nor more than ten (10) days,
exclusive of weekends and holidays, from the date that the summons
is issued. The summons shall apprise the defendant of the nature of
the claim that is being asserted against him or her; and there shall
be endorsed upon the summons the relief sought and the amount for
which the plaintiff will take judgment if the defendant fails to

1 appear. In all cases, pleadings may be amended to conform to the
2 evidence.

3 SECTION 2. This act shall become effective November 1, 2026.
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